EXECUTIVE SUMMARY OF REVISIONS & INSTITUTIONAL PROTECTIONS (DOCUMENTS 1 TO 5)

Prepared for External Accounting, Tax & Statutory Compliance Review — Mapping Structural Rectifications, Pre-Valuation Tax Sequencing, CRO Confidentiality, and Capital Market Stability Safeguards (Companies Act 2014 / TCA 1997 / SDCA 1999)

SECTION 1 — PURPOSE & SCOPE OF THIS BRIEFING MEMORANDUM

1.1 Overview of the Finalised First Tranche (Documents 1 to 5)

This Briefing Memorandum summarises the statutory rectifications, tax-sequencing optimisations, and institutional risk-mitigation upgrades implemented across the first five foundational instruments of the NOESIS Estate: Document 1 (Master Structural & Strategic Blueprint), Document 2 (Statutory & Execution Control Sheet), Document 3 (Subsidiary Dual-Class Constitution of Asterial Limited), Document 4 (Parent Dual-Class Constitution of NOESIS AI Agent System Limited), and Document 5 (Three-Ring Organism & Governance Charter). It is structured to provide external tax and accounting advisers with a complete, self-contained audit trail of what has been amended from initial working drafts and the precise statutory and commercial rationale behind each modification.

SECTION 2 — TAX SEQUENCING, CORPORATE ENTITY DISCIPLINE & STATUTORY RECTIFICATIONS

2.1 Strict Live CRO Entity Discipline & Section 45 Pre-Incorporation Joinder

(a) What Changed: Earlier baseline drafts included planned or unconfirmed vertical names as operative parties and contained minor naming variances. Across Documents 1 to 5, only the five (5) live private companies limited by shares currently registered with the Companies Registration Office (CRO) are named as existing corporate signatories: (1) NOESIS AI Agent System Limited (CRO No. 805939, Top Holding Company); (2) Asterial Limited (CRO No. 804907, Core IP Nucleus & R&D Subsidiary); (3) Zubelsala Limited (CRO No. 817481, Estate Continuity Custodian & Incubation Vault); (4) SanCelvio Limited (CRO No. 817480, Commercial Social Good Subsidiary); and (5) Mainly Velocity Limited (CRO No. 804908, trading as Velocity AI, Enterprise Intelligence & Build Subsidiary).

(b) Statutory & Commercial Rationale: Naming un-incorporated entities in executed deeds creates formal validity defects. Under Section 1.2 of Document 2 and Section 8.3 of Document 5, all planned operating verticals (Occasio, Fiducia, Glór, Táirseach, Sensai, Inneall, Fabrica, Tír AI, AI Accountancy, Kairos, and ODIN Labs) are defined as Permitted Group Subsidiaries that accede automatically upon incorporation by executing a one-page Deed of Adherence and passing a board ratification resolution pursuant to Section 45 of the Companies Act 2014, without requiring any amendment to the core suite or investor consent.

2.2 Four-Step Pre-Valuation Chronological Sequence (Elimination of Upfront Tax Valuation Gate)

(a) What Changed: In Document 2 (Section 3), the chronological execution sequence has been strictly ordered into four discrete, timestamped steps: Step 1 (Adoption of Dual-Class Constitutions, Form G1 filings, Section 238/231 approvals, and Group Charter while at 100% Founder ownership); Step 2 (Allotment of Day 1 nominal cash shares at EUR 0.01 per share across NOESIS and Asterial, plus execution of the private Shareholders' Agreement and Section 169 Register of Members entry, while both companies are unvalued nominal cash shells); Step 3 (Execution of the Chain-of-Title Schedule, the Omnibus Deed of IP Assignment transferring the 15,000+ ODIN assets into Asterial Limited for nominal consideration of EUR 1.00 / EUR 10.00, and the Master Inter-Company Umbrella License); and Step 4 (Pre-Round 1 KEEP/ESOP sizing under Section 128F TCA 1997, standalone VAT registrations, and Investor Pre-Term Sheet Rider execution).

(b) Tax & Accounting Rationale: In earlier drafts, referencing Section 600 or Section 617 TCA 1997 reliefs implied that intellectual property might be transferred prior to or simultaneously with share subscriptions, which would require a costly formal tax valuation and risk an upfront income tax or benefit-in-kind charge under Sections 128 or 547 TCA 1997 on minority/executive allotments. By completing Step 2 nominal cash subscriptions while NOESIS and Asterial hold zero IP and zero trading goodwill, EUR 0.01 per share equals full unrestricted market value at the timestamp of allotment. Executing the Step 3 IP assignment afterward for nominal cash consideration (EUR 1.00 / EUR 10.00) with zero debt assumption relies cleanly on the intellectual property stamp duty exemption under Section 101 of the Stamp Duties Consolidation Act 1999 (eliminating 2% ad valorem stamp duty) and immediately starts the three-year holding clock for Revised Entrepreneur Relief (Section 597AA TCA 1997) and parent participation exemption (Section 626B TCA 1997).

2.3 Standardised Four-Class Share Taxonomy & Perpetual Super-Voting Governance

(a) What Changed: Earlier drafts contained an inverted class labelling between Class A and Class B shares and included a 10-year automatic sunset on super-voting rights. Documents 2, 3, and 4 now standardise the share capital across the estate into four classes of EUR 0.01 nominal value each: Class A Super-Voting Ordinary Shares (carrying 10 votes per share on all resolutions in perpetuity with zero time-based sunset, 100 votes per share under Bushell v Faith principles on any Section 146 resolution to remove a Class A-appointed Director, and an entrenched 75.5% constitutional voting floor); Class B Ordinary Shares (non-voting at parent level; carrying the Founder's 3.0% personal secondary liquidity tranche at Asterial level); Class C Performance Bonus / Option Shares (strictly non-voting, milestone-gated shares and Section 128F KEEP options); and Class F Family Shares (strictly non-voting shares in NOESIS ranking 100% pari passu pro-rata per share on all dividends and exit distributions).

(b) Cap Table Arithmetic & Section 105 Nominal Redemption Mechanics: In NOESIS (Document 2, Section 2.2), Day 1 shareholdings are locked at 86.0% Founder (Class A), 8.0% family/early participants (8 x 1.0% Class F/B), and 6.0% executive partners (3 x 2.0% Class B, structured as 1.0% unconditional Day 1 + 1.0% subject to 12-month reverse vesting), alongside a private Year 2 (+1.0%) and Year 3 (+1.0%) Class C milestone pathway capped at 4.0% per executive, preserving an 80.0% direct equity floor for the Founder prior to external rounds (a 4.5% buffer above the 75.5% voting floor). Under Article 12(b) of Documents 3 and 4, unvested reverse-vesting and Bad Leaver shares are designated as redeemable shares under Sections 66(4) and 105 CA 2014 at EUR 0.01 nominal value per share, ensuring leaver clawbacks never drain distributable reserves.

2.4 Public CRO Confidentiality vs. Private Shareholders' Agreement Separation

(a) What Changed: All personal executive partner names, individual percentage allocations, and commercial milestone schedules have been removed from the public Constitutions of Asterial Limited (Document 3) and NOESIS AI Agent System Limited (Document 4) and routed strictly into the private Shareholders' Agreement (Document 6).

(b) Statutory & Commercial Rationale: Because a Company Constitution filed with Form G1 on the CRO CORE portal is a public document inspectable by any third party or competitor, publicising private executive equity incentives or family allocations is contrary to Arthur Cox / McCann FitzGerald corporate practice. Documents 3 and 4 codify the statutory share classes, voting weights, 75.5% voting floor, 80.0% Founder equity floor, and compulsory redemption mechanics, while leaving private commercial schedules strictly off the public register.

2.5 Multi-Round Founder 3.0% Secondary Liquidity Right & Independent Venture Carve-Out

(a) Asterial 97.0% / 3.0% Split: In Document 3 (Article 5.1 & Article 6.5), initial subscription is locked at 97.0% NOESIS (970,000 Class A Shares) and 3.0% Shane McCarthy personally (30,000 Class B Shares). Article 6.5 entrenches a pre-approved constitutional right for the Founder to sell all or any portion of his 3.0% Class B tranche across one or more primary financing rounds (so any portion unsold in Round 1 carries forward automatically into Round 2 and subsequent rounds), completely exempt from institutional lock-ups, ROFO/ROFR, or pre-emption.

(b) Commercial Revenue Streams & Independent Venture Boundary: Documents 3, 4, and 5 explicitly authorise Asterial's five commercial revenue streams (ring-fenced derivative IP sales/acquisitions, R&D, bespoke one-off frontier builds, subsidiary access royalties, and enterprise licensing) and Fabrica's commissioned client builds without breaching the Ring 1 ODIN core lock. In addition, Article 10 of Documents 3 and 4 and Section 6 of Document 5 grant an express statutory conflict release under Section 228(1)(f) CA 2014 carving out independent personal ventures operated outside the group on separate infrastructure (specifically Mac Enterprises) from all group IP sweeps, corporate opportunity claims, and post-exit restrictive covenants.

SECTION 3 — INSTITUTIONAL CAPITAL MARKET STABILITY & SECONDARY TRANSFER LOCKS

3.1 Rationale for the Seven-Point Institutional Protection Suite (Articles 5, 6, 9 & 12 of Docs 3 & 4)

To protect the NOESIS Estate and Asterial Limited against premature secondary share liquidations by Round 1 or Round 2 institutional investors, indirect competitor infiltration, or distressed secondary trades during a broader technology or AI sector cyclical downturn (which could otherwise establish an artificially depressed mark-to-market clearing price or negative market signal prior to a major exit), Documents 2, 3, 4, and 5 incorporate seven black-letter statutory safeguards:

(a) Absolute Director Discretion to Refuse Transfers (Section 95(1)(a) CA 2014): Article 6.2(a) of Documents 3 and 4 empowers the Directors (acting with the Class A Director) in their absolute discretion and without assigning any reason to decline to register any transfer of shares (save for Permitted Founder Transfers and the Founder's 3.0% secondary right).

(b) Prohibited Transferee Blacklist & 25% Upstream SPV Look-Through (Article 6.2(b)): Strictly bars share transfers (or derivative/beneficial transfers) to any Prohibited Transferee, defined as: (i) any direct or indirect competitor of the group; (ii) any entity or fund in which a competitor holds 5% or more of the equity, voting rights, debt, or LP commitments, or holds board observer/information rights; or (iii) any distressed debt fund, secondary liquidator, activist fund, or litigation funder. If an investor holds shares via an SPV or feeder fund, any transfer or change of control of 25% or more of the upstream economic or voting interests in that SPV to a Prohibited Transferee automatically triggers a mandatory default buyback under Article 6.4.

(c) 36-Month Baseline Transfer Moratorium + 24-Month Class A Market Stability Extension (Article 6.3(a)): Binds all non-Class A shareholders (explicitly including Round 1 and Round 2 institutional investors) to an initial thirty-six (36) month (3-year) transfer moratorium from allotment, coupled with unilateral Class A Director discretion to extend the moratorium by up to two (2) additional consecutive twelve (12) month periods (24 additional months, up to 60 months in aggregate) where secondary transfers would prejudice a primary financing, strategic M&A window, IPO preparation, or company valuation stability. This gives institutional investment committees a standard 36-month headline lock-up while guaranteeing the company a full 24-month recovery buffer to ride out any macro sector contraction without forced selling.

(d) Anti-Signal & Non-Solicitation Covenant (Article 6.3(a) & Document 5 Section 4.2): Strictly prohibits any shareholder from listing shares on any secondary trading platform, engaging a broker to solicit bids, or circulating confidential company or valuation metrics to prospective buyers without prior Class A written consent. Unauthorised marketing of shares constitutes an immediate Default Transfer / Bad Leaver event.

(e) Post-Moratorium 10% Annual Volume Dribble-Out Cap & Primary Capital Priority (Article 6.3(b)): Following expiry of the Moratorium Period, no non-Class A shareholder may transfer more than ten percent (10%) of their original shareholding in any rolling twelve (12) month period, and any permitted secondary sale must occur strictly within a company-coordinated liquidity window subordinated first to 100% subscription of the company's primary capital target and second to the Founder's 3.0% secondary allocation.

(f) 100% Prior Primary Round Minimum Price Floor & 24-Month Deferred Default Buyback (Articles 6.3(c) & 6.4): Bars registration of any secondary transfer at a price per share below 100% of the post-money subscription price of the most recent primary financing round (unless waived in writing by the Class A Shareholder). Any permitted transfer is subject to a Right of First Offer (NOESIS first, Founder second, Company third). Where a transfer notice is triggered by an investor's breach, unauthorised marketing, or LP insolvency/default, NOESIS or the Company may acquire the shares at 75% of fair market value (or EUR 0.01 nominal value on a Bad Leaver breach) payable over a 24-month unsecured, interest-free promissory note—protecting company cash reserves.

(g) Constitutional Ban on Redemption Puts, Forced Exit Timers & Full-Ratchet Anti-Dilution (Articles 5.3 & 9.3): Expressly prohibits any share class from carrying mandatory cash redemption ("put") options, time-based forced liquidation or sale mandates, or any anti-dilution formula more punitive than broad-based weighted average conditioned on full pro-rata participation (pay-to-play). Only the Class A Shareholder may initiate a Change of Control, Drag-Along, or liquidation.

SECTION 4 — INTER-COMPANY FISCAL ISOLATION & CONTINUITY SAFEGUARDS (DOCUMENT 5)

4.1 Tax Ring-Fencing, 30%/70% Treasury Policy & Pre-Wired M&A Continuity

Document 5 codifies four fiscal and operational rules relevant to group accounting: (i) standalone VAT registration for each entity (prohibiting Section 15 VATCA 2010 VAT grouping so secondary tax liabilities can never migrate across subsidiaries); (ii) arm's-length inter-company royalty pricing under Part 35A TCA 1997 preserving Asterial's R&D Tax Credit (Section 766) and Knowledge Development Box (Section 769I) nexus ledger; (iii) the parent 30% pro-rata distribution / 70% treasury retention policy supported by joint close-company surcharge elections under Sections 129 and 434(3A) TCA 1997; and (iv) the pre-wired 90-day synchronization of the Ring 2 Shared Spine into Zubelsala Limited (CRO No. 817481) paired with the Reverse Change-of-Control Liberation Clause (automatically converting all sister-company licenses into perpetual, fully paid-up EUR 1.00 licenses plus a 36-month Ring 1 API SLA immediately prior to any future acquisition of Asterial Limited).